

BRIEF IN SUPPORT OF MOTION TO DISQUALIFY JUDGE McNEILL

STATE OF MICHIGAN
IN THE 14TH CIRCUIT COURT FOR THE COUNTY OF MUSKEGON
FAMILY DIVISION

ANDREW J. PIGORS, Case No. 2024-001507-DC

Plaintiff/Father, Hon. Jenny L. McNeill

v.

EMILY M. WATSON,

Defendant/Mother.

BRIEF IN SUPPORT OF MOTION FOR DISQUALIFICATION

OF THE HONORABLE JENNY L. McNEILL PURSUANT TO MCR 2.003(C)(1)

Filed: March 15, 2026

I. INTRODUCTION

Plaintiff Andrew J. Pigors submits this Brief in Support of his Motion for Disqualification of Judge Jenny L. McNeill. The record in this case presents an extraordinary factual basis for disqualification: 1,127 documented judicial violations, a 44% ex parte order rate with 100% one-sided outcomes, judicial interference with an independent evaluation, reliance on illegally obtained evidence, 571+ days of parenting time deprivation, and 59+ days of incarceration for civil contempt without appointed counsel.

This Brief addresses the legal standards governing judicial disqualification under Michigan Court Rule 2.003, the applicable United States Supreme Court and Michigan precedent, and the application of those standards to the facts of this case. The Brief demonstrates that disqualification is required under each of the three independent grounds set forth in MCR 2.003(C)(1): personal bias or prejudice under subsection (a); serious risk of actual bias under

subsection (b)(i) as articulated in *Caperton v. A.T. Massey Coal Co.*, 556 U.S. 868 (2009); and failure to adhere to the appearance of impropriety standard of Canon 2 under subsection (b)(ii).

II. THE MCR 2.003 STANDARD FOR DISQUALIFICATION

A. Text of the Rule

Michigan Court Rule 2.003(C)(1) provides the grounds for disqualification of a judge:

> A judge is disqualified when the judge cannot impartially hear a case, including but not limited to instances in which:

>

> (a) The judge is biased or prejudiced for or against a party or attorney.

>

> (b) The judge, based on objective and reasonable perceptions, has either (i) a serious risk of actual bias impacting the due process rights of a party as enunciated in *Caperton v. A.T. Massey Coal Co.*, 556 U.S. 868; 129 S.Ct. 2252; 173 L.Ed.2d 1208 (2009), or (ii) has failed to adhere to the appearance of impropriety standard set forth in Canon 2 of the Michigan Code of Judicial Conduct.

B. The Objective Standard

The standard for disqualification under MCR 2.003 is objective, not subjective. The question is not whether the judge subjectively believes she can be fair, but whether "a reasonable person, knowing all the circumstances, would harbor a reasonable apprehension of bias." *Cain v. Dep't of Corrections*, 451 Mich. 470, 497 (1996).

This objective standard serves a dual purpose: it protects the due process rights of individual litigants and it preserves public confidence in the integrity and impartiality of the judiciary as

an institution. As the Michigan Supreme Court has recognized, "the appearance of justice is as important as the substance of justice." *In re Contempt of Dougherty*, 429 Mich. 81, 95 (1987).

C. Cumulative Analysis

While individual judicial rulings rarely form a basis for disqualification, the cumulative effect of a pattern of rulings may. The United States Supreme Court in *Liteky v. United States*, 510 U.S. 540, 555 (1994), held that recusal is warranted when judicial conduct "reveal[s] such a high degree of favoritism or antagonism as to make fair judgment impossible." This cumulative analysis is essential in cases where the pattern — rather than any single act — demonstrates bias.

III. UNITED STATES SUPREME COURT AUTHORITY

A. *Caperton v. A.T. Massey Coal Co.*, 556 U.S. 868 (2009)

Caperton is the foundational modern authority on constitutionally required recusal. The Supreme Court held that the Due Process Clause of the Fourteenth Amendment requires recusal when "there is a serious risk of actual bias — based on objective and reasonable perceptions — when a person with a personal stake in a particular case had a significant and disproportionate influence in placing the judge on the case." *Id.* at 884.

While *Caperton* involved campaign contributions, its holding is not so limited. The Court articulated a broad constitutional principle: due process requires recusal whenever "objective and reasonable perceptions" create a "serious risk of actual bias." *Id.* The Court expressly adopted a "probability of bias" test, rejecting the argument that only proof of actual bias could require recusal.

Application: The probability of bias in this case is established by objective evidence that is, if anything, more compelling than the financial interest in *Caperton*. The 52 ex parte orders,

100% favoring one party, represent a statistical anomaly so extreme that it constitutes de facto proof of bias. If the probability of a fair coin landing heads 52 times in a row is less than one in four quadrillion ($2^{52} \approx 4.5 \times 10^{15}$), the probability that 52 one-sided ex parte orders resulted from impartial adjudication is comparably infinitesimal.

B. In re Murchison, 349 U.S. 133 (1955)

In *Murchison*, the Supreme Court articulated the foundational principle that "a fair trial in a fair tribunal is a basic requirement of due process." *Id.* at 136. The Court emphasized that the requirement of judicial fairness extends beyond the subjective: "our system of law has always endeavored to prevent even the probability of unfairness." *Id.* Justice must "satisfy the appearance of justice." *Id.*

Application: The 1,127 documented violations, the judicial interference with the HealthWest evaluation, and the 100% one-sided ex parte record do not merely create a probability of unfairness — they establish unfairness as an objective fact. No reasonable observer could review this record and conclude that the requirement of *Murchison* — a fair trial in a fair tribunal — has been satisfied.

C. Liteky v. United States, 510 U.S. 540 (1994)

Liteky addressed the scope of the recusal obligation and held that while opinions formed during judicial proceedings do not automatically require recusal, there is a critical exception: recusal is required when the judge's conduct during proceedings "reveal[s] such a high degree of favoritism or antagonism as to make fair judgment impossible." *Id.* at 555.

Application: The cumulative record in this case — 52 one-sided ex parte orders, interference with an independent evaluation, reliance on illegally obtained evidence, 571+ days of parenting time deprivation, 59+ days of incarceration without counsel, disregard of exculpatory evidence, and apparent retaliation for protected First Amendment activity —

reveals precisely the "high degree of favoritism" that Liteky identifies as the threshold for mandatory recusal.

D. Turner v. Rogers, 564 U.S. 431 (2011)

In *Turner*, the Supreme Court addressed the procedural safeguards required before incarcerating a person for civil contempt. The Court held that while the Sixth Amendment right to counsel does not automatically apply in civil contempt proceedings, due process requires either the appointment of counsel or the implementation of "substitute procedural safeguards" — including notice of the critical issues, an opportunity to respond, and express judicial findings. *Id.* at 448–49.

Application: Plaintiff was incarcerated for 59+ days on civil contempt without appointed counsel and without adequate substitute procedural safeguards. This violation of the *Turner* framework — in a case already characterized by overwhelming one-sided adjudication — further evidences the pattern of bias and denial of due process.

E. Troxel v. Granville, 530 U.S. 57 (2000)

The Supreme Court in *Troxel* recognized that "the interest of parents in the care, custody, and control of their children ... is perhaps the oldest of the fundamental liberty interests recognized by this Court." *Id.* at 65. This fundamental right is protected by the Due Process Clause and cannot be deprived without compelling justification and procedural safeguards.

Application: The 571+ day deprivation of Plaintiff's fundamental parental rights, based substantially on ex parte proceedings, tainted evaluation evidence, and disregarded exculpatory evidence, constitutes a deprivation of the highest-order constitutional right without adequate process — itself evidence of bias when viewed in the context of the overall pattern.

IV. MICHIGAN AUTHORITY ON DISQUALIFICATION

A. Cain v. Dep't of Corrections, 451 Mich. 470 (1996)

The Michigan Supreme Court in *Cain* established the objective test for evaluating disqualification: "the question is whether a reasonable person, knowing all the circumstances, would harbor a reasonable apprehension of bias on the part of the judge." *Id.* at 497. The Court emphasized that the standard focuses on the reasonable perception of an informed observer, not on the subjective intent of the judge.

Application: A reasonable person, knowing that 52 ex parte orders were entered in a single case — all favoring the same party — that the judge interfered with an independent evaluation, relied on illegally obtained evidence, disregarded nine clear investigations and negative drug screens, and incarcerated the other party for 59 days without counsel, would not merely harbor a "reasonable apprehension of bias" — they would have certainty of it.

B. In re Contempt of Dougherty, 429 Mich. 81 (1987)

The Michigan Supreme Court in *Dougherty* recognized that disqualification serves both the rights of individual litigants and the institutional integrity of the judiciary. The Court held that when the record demonstrates a pattern of conduct that would cause a reasonable observer to question the judge's impartiality, disqualification is warranted — regardless of the judge's belief in her own fairness.

C. Crampton v. Dep't of State, 395 Mich. 347 (1975)

Michigan courts have long recognized that due process in adjudicative proceedings requires a "fair and impartial decision-maker." *Crampton*, 395 Mich. at 351. This requirement is constitutionally mandated and cannot be waived by the judge's own assessment of her impartiality.

D. People v. Jackson, 292 Mich. App. 583 (2011)

The Michigan Court of Appeals in Jackson affirmed that cumulative judicial conduct across the course of a proceeding may establish a basis for disqualification even where individual acts might not, applying the Liteky "high degree of favoritism or antagonism" standard.

V. THE STATISTICAL ANOMALY ARGUMENT

A. The Mathematical Framework

The statistical evidence in this case provides the most objective and irrefutable basis for disqualification. Statistical analysis removes subjective interpretation and presents the factual pattern in its starkest terms.

B. The Ex Parte Order Analysis

In Case No. 2024-001507-DC, Judge McNeill entered 52 ex parte orders. Every single order favored Defendant Emily Watson. Zero ex parte orders favored Plaintiff Andrew Pigors.

If we conservatively model ex parte orders as independent events with an equal probability of favoring either party (which itself gives maximum benefit of the doubt to the judge), the probability of 52 consecutive orders all favoring the same party is:

$$> P = (1/2)^{52} = 1/4,503,599,627,370,496$$

This is approximately one in 4.5 quadrillion — a probability so infinitesimally small that it is, for all practical purposes, zero.

C. Even Under Relaxed Assumptions

Even if we relax the assumption and acknowledge that in domestic relations cases the responding party may prevail somewhat more often on ex parte motions, the statistical anomaly remains overwhelming. If we assume the probability of each order favoring the defendant is 70% (a generous assumption far exceeding any documented baseline):

$$> P = (0.70)^{52} \approx 1.74 \times 10^{-8}$$

This is approximately one in 57 million — still a virtual impossibility absent systematic bias.

D. The Denial Rate Comparison

The disparate treatment is further evidenced by comparing outcomes:

- Defendant's ex parte motions: 52 filed, 52 granted (100% grant rate)
- Plaintiff's motions: The vast majority denied or dismissed, often without hearing

This comparative analysis eliminates the possibility that the one-sided outcomes are attributable to the merits of the individual motions rather than to systemic bias.

E. Statistical Significance in Legal Context

Courts have recognized statistical evidence as probative of discriminatory intent in employment discrimination (*Hazelwood Sch. Dist. v. United States*, 433 U.S. 299 (1977)), jury selection (*Batson v. Kentucky*, 476 U.S. 79 (1986)), and other contexts. The statistical anomaly presented here far exceeds the thresholds that courts have found sufficient to establish a prima facie case of bias or discrimination in those contexts.

VI. APPLICATION OF LAW TO FACTS

A. MCR 2.003(C)(1)(a) — Personal Bias or Prejudice

The record establishes personal bias or prejudice through the totality of circumstances:

1. The 52 one-sided ex parte orders (statistical impossibility absent bias);
2. Judicial interference with the HealthWest evaluation (active manipulation of evidence);
3. Reliance on illegally obtained evidence (disregard for legal protections);
4. Systematic disregard of exculpatory evidence (outcome-driven adjudication);

5. Escalating adverse action following protected activity (retaliatory animus);
6. 59+ days incarceration without counsel (disproportionate sanction evidencing hostility).

B. MCR 2.003(C)(1)(b)(i) — Serious Risk of Actual Bias (Caperton)

The objective evidence establishes a "constitutionally intolerable probability of actual bias":

1. The statistical probability of the observed ex parte pattern occurring absent bias is less than one in four quadrillion;
2. The 1,127 documented violations across the full spectrum of judicial conduct confirm that the statistical pattern reflects systemic bias rather than random variation;
3. The 3,003 forensic findings independently corroborate the bias pattern.

C. MCR 2.003(C)(1)(b)(ii) — Failure to Adhere to Appearance of Impropriety Standard (Canon 2)

The appearance of impropriety is overwhelming:

1. The 1,072 documented Canon 3 violations confirm systematic failure of impartial performance;
2. The judicial canons matrix shows violations concentrated in adjudicative responsibilities (560), equal treatment (169), and right to be heard (108);
3. A reasonable, informed observer would have no basis to conclude these proceedings were impartial.

VII. CONCLUSION

The record in Case No. 2024-001507-DC presents an extraordinary case for judicial disqualification. The evidence is not confined to a disagreement with unfavorable rulings — it encompasses 1,127 documented violations, a statistical impossibility of 52 one-sided ex parte

orders, active judicial interference with an independent evaluation, reliance on illegally obtained evidence, 571+ days of parenting time deprivation, and 59+ days of incarceration without counsel.

Under any applicable legal standard — personal bias under MCR 2.003(C)(1)(a), serious risk of actual bias under Caperton, or the appearance of impropriety under Canon 2 — disqualification is not merely warranted but compelled.

Plaintiff respectfully requests that the Court grant the Motion for Disqualification, reassign this case, and order de novo review of Judge McNeill's orders.

Respectfully submitted,

Andrew J. Pigors, Plaintiff Pro Se

1977 Whitehall Rd

North Muskegon, MI 49445

(231) 903-5690

[ANDREW: insert your email address]

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